

Amendment No. 1 to HB2278

Terry
Signature of Sponsor

AMEND Senate Bill No. 2414*

House Bill No. 2278

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-11-1303, is amended by adding the following as new subsections:

(i)

(1) Any certificate of public advantage in effect on June 30, 2028, automatically expires; provided, that any pricing restrictions in a certificate of public advantage that are in effect as of the expiration date remain in effect until the earlier of the fifth anniversary of the expiration date or the date that a new inpatient acute care hospital opens in the geographic service area covered by the expired certificate of public advantage.

(2) After June 30, 2028, the pricing restrictions must be supervised by the attorney general and reporter pursuant to a supervision agreement, and may only be modified by the mutual written agreement of the entity subject to the pricing restrictions and the attorney general and reporter. The entity subject to the pricing restrictions is responsible for the costs of the attorney general and reporter's supervision of the pricing restrictions.

(3) This section does not limit or impair the authority of the attorney general and reporter to enforce state or federal antitrust law.

(j) Notwithstanding part 16 of this chapter, or another law to the contrary, an acute care hospital in the same geographical area that a certificate of public advantage expired pursuant to subsection (i) is not required to obtain a certificate of need pursuant to § 68-11-1607.

SECTION 2. Tennessee Code Annotated, Section 68-11-1607(a), is amended by deleting "A person shall not perform" and substituting "Except as provided in § 68-11-1303(j), a person shall not perform".

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.